

Introduction

War does not remove the fundamental rights of civilians. Sudanese citizens, refugees, asylum-seekers, internally displaced people, returnees, migrants, women, children, older people, and people with disabilities remain entitled to dignity, humane treatment, safety, and protection.

These protections are supported by the **Constitutional Charter for the Transitional Period of 2019**, Sudanese legislation, the Universal Declaration of Human Rights, the International Covenant on Civil and Political Rights, the African Charter on Human and Peoples' Rights, the Geneva Conventions, international refugee law, and international humanitarian law.

Article 42 of the 2019 Constitutional Charter describes the Bill of Rights as an agreement between the Sudanese people and their governments. It also provides that rights contained in international and regional human-rights agreements ratified by Sudan form part of the Charter.

Rights may be restricted only according to law and legitimate public-interest requirements. Restrictions must not be arbitrary, discriminatory, excessive, or used to justify torture, collective punishment, enforced disappearance, or attacks against civilians.

Right to Life and Human Dignity

Article 44 of the 2019 Constitutional Charter recognizes every person's fundamental right to life, dignity, and personal safety. It prohibits arbitrary deprivation of life.

This protection is supported by:

- Article 3 of the Universal Declaration of Human Rights.
- Article 6 of the International Covenant on Civil and Political Rights.
- Article 4 of the African Charter on Human and Peoples' Rights.
- Common Article 3 of the Geneva Conventions.

Civilians should not be deliberately killed, executed, abducted, disappeared, or targeted during military operations.

Parties to the conflict must distinguish between civilians and military targets. Homes, hospitals, schools, markets, religious buildings, refugee sites, and humanitarian facilities should not be deliberately attacked.

Protection from Torture and Cruel Treatment

Article 51 of the 2019 Constitutional Charter prohibits torture and harsh, inhuman, or degrading treatment or punishment.

This protection applies to civilians, prisoners, detainees, refugees, asylum-seekers, children, suspected criminals, and people accused of supporting either party to the conflict.

Torture may include beatings, electric shocks, sexual violence, forced confessions, threats against relatives, prolonged solitary confinement, humiliation, starvation, and deliberate denial of medical treatment.

The protection is also supported by:

- Article 5 of the Universal Declaration of Human Rights.
- Article 7 of the International Covenant on Civil and Political Rights.
- The Convention against Torture.
- Common Article 3 of the Geneva Conventions.
- Article 5 of the African Charter on Human and Peoples' Rights.

No emergency, military order, counter-terrorism operation, or political crisis justifies torture.

Protection from Arbitrary Arrest and Detention

Article 46 of the 2019 Constitutional Charter recognizes the right to freedom and security. No person should be arrested, detained, or deprived of liberty except for a lawful reason and through procedures established by law.

A person who is detained should be treated humanely and with respect for their dignity. The person should be informed of the reason for arrest and the charges against them without unnecessary delay.

These protections are supported by:

- Article 9 of the Universal Declaration of Human Rights.
- Article 9 of the International Covenant on Civil and Political Rights.
- Article 6 of the African Charter on Human and Peoples' Rights.
- Common Article 3 of the Geneva Conventions.

Secret detention, enforced disappearance, detention without charge, denial of legal assistance, and denial of contact with family are serious violations.

Right to a Fair Trial

Article 52 of the 2019 Constitutional Charter provides fair-trial protections. An accused person is presumed innocent until proven guilty according to law.

The accused must be informed of the reasons for arrest and the charge against them. Civil and criminal proceedings should be heard by a competent ordinary court through a fair and open process.

Fair-trial rights include access to legal assistance, adequate time to prepare a defence, the ability to present and challenge evidence, interpretation where necessary, and a decision by an independent and impartial court.

These protections are also supported by:

- Articles 10 and 11 of the Universal Declaration of Human Rights.
- Article 14 of the International Covenant on Civil and Political Rights.
- Article 7 of the African Charter on Human and Peoples' Rights.
- Common Article 3 of the Geneva Conventions.

Freedom of Movement and Residence

The 2019 Constitutional Charter recognizes the freedom and security of the person and protects individuals from unjustified restrictions on liberty.

Freedom of movement is also supported by:

- Article 13 of the Universal Declaration of Human Rights.
- Article 12 of the International Covenant on Civil and Political Rights.
- Article 12 of the African Charter on Human and Peoples' Rights.

People should be able to move, choose their residence, leave Sudan, and return where applicable under national and international law.

In practice, movement may be restricted by armed checkpoints, military operations, roadblocks, curfews, explosive devices, insecurity, lack of documentation, and fear of abduction or attack.

Civilians should not be forcibly displaced unless evacuation is necessary for their safety or required by an imperative military reason. Displaced people should receive shelter, food, water, healthcare, sanitation, protection, and information.

Protection from Forced Displacement

International humanitarian law prohibits the forced displacement of civilians unless strict legal conditions are met.

Article 49 of the Fourth Geneva Convention prohibits forcible transfers and deportations of protected civilians. Article 17 of Additional Protocol II prohibits ordering the

displacement of civilians for reasons connected with the conflict unless civilian safety or imperative military reasons require it.

The Kampala Convention and the UN Guiding Principles on Internal Displacement also protect people from arbitrary displacement.

Any evacuation should be temporary where possible, conducted safely, and accompanied by adequate arrangements for shelter, food, water, healthcare, sanitation, and family unity.

Refugee Protection and Non-Refoulement

Sudanese refugees and asylum-seekers are protected by the 1951 Refugee Convention, the 1967 Protocol, the African Refugee Convention, and the principle of non-refoulement.

Non-refoulement means that a refugee or asylum-seeker should not be returned to a country or area where they face persecution, torture, serious conflict-related harm, or threats to life and freedom.

The protection is supported by:

- Article 33 of the 1951 Refugee Convention.
- Article 3 of the Convention against Torture.
- Article 22 of the Convention on the Rights of the Child.
- Article 12(3) of the African Charter on Human and Peoples' Rights.

Refugees and asylum-seekers should have access to registration information, documentation, fair asylum procedures, protection, and basic humanitarian services.

Rights of Internally Displaced People

Internally displaced people remain entitled to the rights of Sudanese citizens and residents. They do not lose their rights because they have moved from one part of Sudan to another.

Their protection is supported by:

- The Kampala Convention.
- The UN Guiding Principles on Internal Displacement.
- Articles 43 and 45 of the 2019 Constitutional Charter.
- The International Covenant on Civil and Political Rights.

IDPs should have access to food, water, shelter, healthcare, education, identity documents, work, family unity, property, and protection from discrimination.

They should be protected from forced eviction, land seizure, recruitment, trafficking, sexual violence, exploitation, and abuse.

Equality and Non-Discrimination

Article 43 of the 2019 Constitutional Charter requires the state to protect rights for all people without discrimination based on race, colour, gender, language, religion, political opinion, social status, or other grounds.

This protection is supported by:

- Articles 1 and 2 of the Universal Declaration of Human Rights.
- Articles 2 and 26 of the International Covenant on Civil and Political Rights.
- Article 2 of the African Charter on Human and Peoples' Rights.
- Article 3 of the Convention on the Rights of the Child.

People should not be denied food, healthcare, education, shelter, employment, protection, or justice because of ethnicity, race, gender, religion, political opinion, nationality, displacement status, disability, poverty, or place of origin.

Freedom of Expression and the Press

The 2019 Constitutional Charter protects freedom of expression, communication, access to information, and the press as part of the Bill of Rights.

This protection is supported by:

- Article 19 of the Universal Declaration of Human Rights.
- Article 19 of the International Covenant on Civil and Political Rights.
- Article 9 of the African Charter on Human and Peoples' Rights.

Journalists, human-rights defenders, community leaders, humanitarian workers, and civilians should not be threatened, arrested, tortured, or attacked solely because they report abuses, criticize authorities, discuss public affairs, or document humanitarian conditions.

Restrictions must be lawful, necessary, and proportionate. They must not be used to conceal attacks against civilians or suppress peaceful criticism.

Freedom of Peaceful Assembly and Association

The 2019 Constitutional Charter supports peaceful assembly, association, political participation, and civic activity.

These rights are supported by:

- Article 20 of the Universal Declaration of Human Rights.
- Article 21 of the International Covenant on Civil and Political Rights.
- Article 11 of the African Charter on Human and Peoples' Rights.

People should be able to organize peaceful meetings, demonstrations, community initiatives, professional associations, political groups, and humanitarian activities.

Peaceful demonstrators should not be arbitrarily arrested, beaten, shot, disappeared, or subjected to collective punishment.

Freedom of Religion and Belief

The 2019 Constitutional Charter recognizes freedom of religious belief and worship and protects religious communities.

This protection is supported by:

- Article 18 of the Universal Declaration of Human Rights.
- Article 18 of the International Covenant on Civil and Political Rights.
- Article 8 of the African Charter on Human and Peoples' Rights.

People should not be attacked, forcibly converted, discriminated against, or denied humanitarian assistance because of their religion, religious identity, or beliefs.

Rights of Women and Girls

The 2019 Constitutional Charter recognizes equality and requires the state to protect women's rights and combat discrimination.

Women and girls have the right to safety, dignity, healthcare, education, work, property, participation in public life, and protection from violence.

These protections are supported by:

- Articles 2, 3, and 5 of the Convention on the Elimination of All Forms of Discrimination against Women, where applicable.
- The Convention on the Rights of the Child.
- The African Charter on Human and Peoples' Rights.
- UN Security Council resolutions on women, peace, and security.

Conflict increases the risk of rape, sexual slavery, forced marriage, sexual exploitation, trafficking, domestic violence, and abuse at checkpoints.

Survivors are entitled to medical care, psychosocial assistance, protection, and confidential support. Sexual violence is never the survivor's fault.

Rights of Children

Article 50 of the 2019 Constitutional Charter recognizes the protection of children's rights under international and regional agreements ratified by Sudan.

Children are also protected by:

- Articles 6, 19, 22, 32, 34, 35, 38, and 39 of the Convention on the Rights of the Child.
- The Optional Protocol on the involvement of children in armed conflict.
- The African Charter on the Rights and Welfare of the Child.
- International humanitarian law.

Children should be protected from recruitment, use by armed groups, killing, injury, abduction, sexual violence, forced marriage, trafficking, exploitation, and family separation.

Children associated with armed groups should receive protection, rehabilitation, education, medical assistance, psychosocial support, and family-reunification services.

Right to Healthcare

The right to healthcare is supported by the 2019 Constitutional Charter's social and economic rights provisions and by:

- Article 25 of the Universal Declaration of Human Rights.
- Article 12 of the International Covenant on Economic, Social and Cultural Rights.
- Article 24 of the Convention on the Rights of the Child.
- Article 16 of the African Charter on Human and Peoples' Rights.

Hospitals, clinics, ambulances, medical personnel, and patients must be protected during armed conflict.

People should not be denied emergency treatment because of ethnicity, displacement status, nationality, political opinion, disability, gender, or inability to pay when emergency services are available.

Right to Food, Water, Shelter, and Sanitation

Conflict-affected people should have access to food, drinking water, shelter, sanitation, healthcare, and protection.

This protection is supported by:

- Article 25 of the Universal Declaration of Human Rights.
- The International Covenant on Economic, Social and Cultural Rights.
- The Convention on the Rights of the Child.
- The Kampala Convention.
- Articles 55 and 56 of the Fourth Geneva Convention, concerning food and medical supplies for civilians in occupied territories.

Humanitarian aid should not be stolen, blocked, diverted, sold unlawfully, or exchanged for political loyalty, military recruitment, money, or sexual favours.

Parties to the conflict should allow and facilitate rapid and unhindered humanitarian relief for civilians in need.

Protection of Humanitarian Workers

Humanitarian workers should be allowed to assist civilians safely, independently, and impartially.

International humanitarian law protects relief personnel and humanitarian operations. Attacks, threats, abductions, extortion, unlawful detention, and obstruction of humanitarian workers can prevent civilians from receiving lifesaving assistance.

Humanitarian organizations should respect confidentiality, neutrality, impartiality, independence, and the dignity of the people they serve.

Protection of Property

The 2019 Constitutional Charter protects human dignity, equality, and the rule of law. Property protection is also supported by:

- Article 17 of the Universal Declaration of Human Rights.
- Article 14 of the African Charter on Human and Peoples' Rights.
- Article 46 of the Fourth Geneva Convention.
- The Kampala Convention and UN Guiding Principles on Internal Displacement.

Civilians should not have their homes, land, farms, livestock, shops, or personal possessions unlawfully seized, destroyed, or looted.

Displaced people may lose land records and property documents. Legal assistance, community mediation, official documentation, witness statements, and property records may assist with resolving disputes where safe and available.

Privacy and Personal Information

The right to privacy is supported by:

- Article 12 of the Universal Declaration of Human Rights.
- Article 17 of the International Covenant on Civil and Political Rights.
- Article 16 of the Convention on the Rights of the Child.
- The privacy and dignity protections contained in the 2019 Constitutional Charter.

Personal information should not be collected, used, or disclosed without a lawful reason or informed consent.

Special protection should be given to the identity and location of survivors of sexual violence, children, refugees, asylum-seekers, journalists, witnesses, detainees, defectors, and people accused of supporting either party to the conflict.

Reporting Abuse and Access to Remedies

The 2019 Constitutional Charter recognizes the rule of law, human dignity, legal protection, and access to justice.

A person experiencing abuse may seek support from a trusted health facility, protection organization, women-led organization, legal-aid provider, community protection officer, humanitarian agency, court, police service, or appropriate government institution.

Reporting should be voluntary and safe. A person should not be forced to report to the police, publicly identify an attacker, or provide information that may expose them or their family to retaliation.

The right to an effective remedy is also supported by:

- Article 8 of the Universal Declaration of Human Rights.
- Article 2(3) of the International Covenant on Civil and Political Rights.
- Article 7 of the African Charter on Human and Peoples' Rights.
- The UN Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power.